

ANNEX C - EPA Internal Review Correspondence and Regulatory Reliance Record

(Evidentiary Annex to the Statement of Matters of Public Interest)

Document Control — Version 1.2 (Supplementary)

C43. Document Control

C43.1

This Annex is issued as Version 1.2 and supplements Annex C Version 1.1 previously provided to relevant authorities.

C43.2

Annex C Versions 1.0 and 1.1 remain unchanged and continue to form part of the administrative and evidentiary record as originally provided.

C43.3

Version 1.2 records additional material arising from completion of the Environment Protection Authority Victoria Freedom of Information process relating to FOI-010-2026, including material disclosed following expiry of third-party review rights.

C43.4

This Version does not amend, replace or retrospectively alter previously issued versions of Annex C and is to be read together with those versions for completeness of the administrative record.

C44. EPA FOI-010-2026 — Completion of Third-Party Review Process

C44.1

By notice of decision dated 30 March 2026, the Environment Protection Authority Victoria determined FOI-010-2026 and identified a number of documents that were not immediately available for release pending expiry of statutory review rights afforded to affected third parties.

C44.2

By correspondence dated 25 June 2026, the Environment Protection Authority Victoria advised that:

- (a) the statutory period during which affected third parties could seek review of the decision expired on 29 May 2026;
- (b) no application for review had been received by the Environment Protection Authority Victoria; and
- (c) the remaining documents could therefore be released.

C44.3

The documents released on 25 June 2026 consequently form part of the disclosed Environment Protection Authority Victoria administrative record available to the Trustee.

C44.4

This Version records those additional documents together with the administrative record arising from their disclosure.

C45. Additional EPA Material Disclosed

C45.1

The material disclosed by the Environment Protection Authority Victoria following completion of the third-party review process comprises:

- (a) Environmental Auditor Verification – Stage 1 Elaine Post-Construction Noise Assessment (Revised);
- (b) Environmental Auditor Verification – Stage 1 Yendon Post-Construction Noise Assessment;
- (c) Environmental Auditor Verification – Stage 2 Post-Construction Noise Assessment (24 September 2024);
- (d) SLR On / Off Noise Testing Report;
- (e) SLR Yendon Noise Monitoring Investigation Report;
- (f) EPA Desktop Assessment DTA-00029756; and
- (g) associated supporting correspondence and administrative records.

C45.2

The documents identified at C45.1 supplement the material previously disclosed under FOI-010-2026 and complete the documentary disclosure made to the Trustee in relation to Information Gathering Notice IGN-00008382 following completion of the applicable statutory third-party review process.

C45.3

Version 1.2 records the administrative significance of those documents only.

C45.4

Nothing within this Version should be read as determining the technical correctness of the consultant material or the legal effect of the Environment Protection Authority Victoria's administrative conclusions.

C46. Information Gathering Notice — Administrative Record

C46.1

The additional disclosed material identifies the complete administrative sequence relating to Information Gathering Notice IGN-00008382.

C46.2

On the disclosed record, that sequence comprises:

- (a) issue of Information Gathering Notice IGN-00008382 by the Environment Protection Authority Victoria;
- (b) provision of information and supporting documentation by Lal Lal Wind Farms Nom Co Pty Ltd in response to that Notice;
- (c) consideration of that material by the Environment Protection Authority Victoria through Desktop Assessment processes;

(d) recording by the Environment Protection Authority Victoria of its administrative conclusions in relation to the information provided; and

(e) subsequent disclosure of those documents pursuant to FOI-010-2026.

C46.3

Accordingly, the disclosed record now identifies the administrative and documentary pathway by which the Environment Protection Authority Victoria received, considered and recorded its administrative position concerning the material requested under Information Gathering Notice IGN-00008382.

C46.4

The additional disclosed material therefore completes the administrative chronology previously recorded within this Annex concerning the Information Gathering Notice process.

C47. EPA Desktop Assessment Record

C47.1

The disclosed material includes EPA Desktop Assessment DTA-00029756 relating to the Environment Protection Authority Victoria's consideration of material provided in response to Information Gathering Notice IGN-00008382.

C47.2

The Desktop Assessment records that the Environment Protection Authority Victoria considered documentation provided by Lal Lal Wind Farms Nom Co Pty Ltd in response to the Information Gathering Notice.

C47.3

The Desktop Assessment identifies documentation considered by the Environment Protection Authority Victoria including:

- (a) post-construction noise assessment reports;
- (b) Environmental Auditor verification reports;
- (c) consultant technical reports;
- (d) on/off noise testing material; and
- (e) associated supporting documentation provided in response to the Information Gathering Notice.

C47.4

The Desktop Assessment records that Regulation 131D of the Environment Protection Regulations 2021 did not apply to the Lal Lal Wind Farm and records consideration of documentation prepared pursuant to the Planning Permit framework.

C47.5

The Desktop Assessment records the Environment Protection Authority Victoria's administrative conclusion that the information requested under the Information Gathering Notice had been provided.

C47.6

The Desktop Assessment records the Environment Protection Authority Victoria's administrative conclusion that the material reviewed “demonstrated compliance” with Planning

Permit Condition 23, subject to the qualifications and matters identified within the assessment record.

C47.7

Version 1.2 records the Desktop Assessment as the disclosed Environment Protection Authority Victoria administrative record evidencing consideration of material provided in response to Information Gathering Notice IGN-00008382.

C48. Environmental Auditor Verification Material

C48.1

The additional disclosed material includes Environmental Auditor verification reports relating to Stage 1 (Elaine), Stage 1 (Yendon), and Stage 2 post-construction noise assessment.

C48.2

Collectively, those reports record verification undertaken for the purposes of Planning Permit Conditions 23 and 25.

C48.3

The disclosed Stage 2 Environmental Auditor Verification Report distinguishes verification undertaken for Planning Permit purposes from assessment undertaken pursuant to the Environment Protection Regulations 2021.

C48.4

The Stage 2 report records that existing Planning Permit obligations remained operative unless amended, while separately recording that assessment under the Environment Protection Regulations 2021 constituted a distinct regulatory process.

C48.5

The Stage 2 report records discussion concerning assessment of amplitude modulation and records that further discussion between the operator, the Environment Protection Authority Victoria and the Department of Transport and Planning was identified within the report in relation to the methodology adopted.

C48.6

The disclosed Stage 2 report records reliance upon the SLR Compliance Baseline Noise Monitoring Report dated February 2021, including the revised baseline methodology applied at receptor K15aa.

C48.7

The Stage 1 Yendon Environmental Auditor Verification Report records that timing requirements specified within the approved Noise Compliance Test Plan were not strictly achieved and records that further Stage 2 monitoring was required to clarify compliance at certain locations.

C48.8

Version 1.2 records those matters as disclosed components of the Environment Protection Authority Victoria administrative record.

C49. Additional Technical Assessment Material

C49.1

The additional disclosed material includes consultant reports concerning:

- (a) on/off noise testing; and
- (b) site-specific noise investigation undertaken at locations outside the original compliance receptor network.

C49.2

The disclosed on/off testing report records application of on/off testing methodology for assessment of wind farm contributed noise at locations beyond the original reference receptor network.

C49.3

The disclosed site-specific investigation records that no pre-construction baseline monitoring had been undertaken at the investigated location.

C49.4

The investigation further records that, in the absence of site-specific pre-construction baseline monitoring, wind farm noise levels could not be definitively determined through direct comparison with a location-specific baseline.

C49.5

The investigation records that, in consequence of the absence of site-specific baseline monitoring, comparison with the nearest relevant reference receptor formed the assessment methodology adopted for that investigation.

C49.6

Version 1.2 records those matters as consultant methodologies disclosed through the completed Freedom of Information process.

C50. EPA Administrative Assessment Record

C50.1

The additional disclosed material identifies the documentary material considered by the Environment Protection Authority Victoria in recording its administrative conclusions arising from Information Gathering Notice IGN-00008382.

C50.2

Collectively, the disclosed record identifies consideration of:

- (a) information supplied by Lal Lal Wind Farms Nom Co Pty Ltd;
- (b) consultant post-construction noise assessment reports;
- (c) Environmental Auditor verification reports;
- (d) consultant technical assessment reports;
- (e) supporting documentation accompanying the operator's response; and
- (f) Environment Protection Authority Victoria Desktop Assessment records.

C50.3

Accordingly, the disclosed record now identifies the documentary sequence through which information was requested, provided, considered and recorded by the Environment Protection Authority Victoria.

C50.4

Version 1.2 records that documentary sequence as part of the disclosed administrative record only.

C51. NZS 6808:2010 and Noise Compliance Test Plan Documentary Record

C51.1

The additional disclosed material records consultant methodologies and Environmental Auditor observations concerning, amongst other matters:

- (a) revised baseline regression analysis undertaken for receptor K15aa;
- (b) application of on/off testing methodology;
- (c) assessment methodology applied at locations where site-specific pre-construction baseline monitoring had not been undertaken; and
- (d) assessment of amplitude modulation discussed within the Stage 2 Environmental Auditor Verification Report.

C51.2

The disclosed Environment Protection Authority Victoria administrative record records consideration of those methodologies through:

- (a) consultant reports;
- (b) Environmental Auditor verification reports;
- (c) the operator's response to Information Gathering Notice IGN-00008382; and
- (d) Environment Protection Authority Victoria Desktop Assessment records.

C51.3

The disclosed record does not expressly identify any separate instrument, approval, authorisation or formal administrative record evidencing modification to, departure from, or alternative application of NZS 6808:2010 or the approved Noise Compliance Test Plan beyond the methodologies recorded within the disclosed consultant and Environmental Auditor documentation itself.

C51.4

Version 1.2 records that observation solely as a document identification outcome arising from the disclosed administrative record.

C51.5

Nothing within this clause determines:

- (a) whether any such instrument exists outside the disclosed record;
- (b) the legal effect of the consultant methodologies recorded within the disclosed material; or
- (c) the regulatory significance of the matters recorded.

C52. Record Status

C52.1

Version 1.2 records the completion of the Environment Protection Authority Victoria documentary record presently disclosed to the Trustee in respect of FOI-010-2026.

C52.2

The additional disclosed material identifies the complete administrative sequence comprising:

- (a) Information Gathering Notice IGN-00008382;
- (b) the operator's response to that Notice;
- (c) Environment Protection Authority Victoria Desktop Assessment;
- (d) the Environment Protection Authority Victoria's recorded administrative conclusions; and
- (e) subsequent disclosure of those records pursuant to the Freedom of Information Act 1982.

C52.3

The additional disclosed material further identifies the consultant reports, Environmental Auditor verification reports and supporting documentation considered by the Environment Protection Authority Victoria in recording those administrative conclusions.

C52.4

Version 1.2 therefore supplements Annex C Versions 1.0 and 1.1 by recording the completed documentary pathway disclosed through FOI-010-2026.

C52.5

Version 1.2 records the Environment Protection Authority Victoria administrative record as disclosed following completion of FOI-010-2026 and is to be read together with Annex C Versions 1.0 and 1.1.

C52.6

This Version records:

- (a) the additional material disclosed following completion of the Freedom of Information process;
- (b) the administrative sequence identified by that material; and
- (c) document identification outcomes arising from the completed disclosure.

C52.7

This Version does not determine:

- (a) compliance with the Planning Permit;
- (b) compliance with the Environment Protection Act 2017 (Vic);
- (c) compliance with the Environment Protection Regulations 2021 (Vic);
- (d) breach, fault, liability or maladministration; or
- (e) the legal effect of the matters recorded elsewhere within this Annex.